

2. M-CV-0089133 US Bank NA v. Togar, Tito

Motion for Summary Judgment

Request for Judicial Notice

Plaintiff's request for judicial notice is granted.

Ruling on Motion

Plaintiff moves for summary judgment.

"A party may move for summary judgment in an action or proceeding if it is contended that the action has no merit or that there is no defense to the action or proceeding." (Code Civ. Proc. § 437c (a)(1).) "The motion for summary judgment shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law." (Code Civ. Proc. § 437c (c); *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 843.)

This action stems from an alleged breach of contract on a line of credit account. Defendant has not filed an opposition or response.

The elements for a breach of contract cause of action are: (a) the existence of a contract; (b) the plaintiff's performance or excuse for nonperformance; (c) the defendant's breach under the terms of the contract; and (d) resulting damages to the plaintiff. (*Jade Fashion & Co. v. Harkham Indus., Inc.* (2014) 229 Cal. App. 4th 635, 645.) Plaintiff filed a Separate Statement of Undisputed Material Facts (Separate Statement) in support of the motion to establish the elements of breach of contract.

Defendant applied to plaintiff for a credit card account and entered into a written credit card account agreement with plaintiff for the account number ending in 7343 (the account). (See Separate Statement 1.) The defendant agreed to be bound by the terms and conditions set forth in the cardmember agreement when the defendant applied for, received or used the credit card account. In addition, the cardmember agreement provides that use of the card constitutes acceptance of the agreement. (See Separate Statement 2, 11.) By use of the card, defendant agreed to pay plaintiff for all charges made on this account, bearing the account number ending in 7343. (See Separate Statement 2.) Plaintiff complied with its obligations under the agreement by paying vendors for all charges that were made on defendant's account. (See Separate Statement 3.) Defendant received billing statements yet failed to produce any evidence indicating that defendant disputed any portion of any billing statement. (See Separate Statement 4, 5.) The defendant defaulted by failing to make payments on the account as they became due. (See Separate Statement 6.) The last payment applied to the account was on or about September 22, 2023. (See Separate Statement 7.)

Plaintiff meets its burden as the moving party to establish entitlement to judgment as a matter of law, shifting the burden to defendant to establish a triable issue of material fact. As defendant filed no opposition to the present motion, defendant fails to meet its burden and the evidence presented is unopposed on the record. (Code Civ. Proc. § 437c (c); *Aguilar, supra*, 25 Cal.4th at 850.)

Based on the foregoing, plaintiff's motion for summary judgment is granted.

3. M-CV-0094075 Jin, Yurong v. Li, Yuejia

Motion to Stay the Execution of Judgment

Appearance of the parties is required on **May 12, 2026 at 8:30 a.m. in Department 42.**

4. M-CV-0095721 Marie E Gallagher 2003 Trust v. Gallagher, Richard

Motion to Set Aside Default and Default Judgment

Defendant Richard Gallagher moves for a stay in execution of judgment and asks that default and default judgment be set aside. The court deemed this motion to be a motion to set aside pursuant to Code of Civil Procedure section 473(b) by its order scheduling this hearing. (Ruling on ex parte application, Apr. 29, 2026.) Plaintiff opposes the motion.

The court may “upon any terms as may be just” set aside default due to the moving party’s “mistake, inadvertence, surprise, or excusable neglect.” (Code Civ. Proc., § 473, subd. (b).) A motion to set aside default must be made “within a reasonable time, in no case exceeding six months” from the entry of default. (*Ibid.*) A party seeking Section 473(b) relief must demonstrate due diligence and must bring the motion within 180 days. (*Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 982; Code Civ. Proc., § 473, subd. (b).) Here, defendant’s motion is timely brought within one month of entry of default and default judgment. As to grounds for relief, defendant declares he was never served with the summons and complaint. A proof of service filed March 3, 2026 shows defendant Gallagher was served by substitute service pursuant to Code of Civil Procedure section 415.20(b) by leaving a copy of the summons and complaint with Gregory Sansenbach on March 1, 2026 and by mailing the same on March 2, 2026. Defendant Gallagher argues that this service was not effective due to the disability of Sansenbach. While the court has insufficient information to determine the effectiveness of this service, it does appear to the court the service did not result in actual notice to defendant. Defendant’s failure to timely respond to the complaint constitutes sufficient “mistake, inadvertence, surprise, or excusable neglect” within the meaning of Code of Civil Procedure section 473(b). Moreover, the court observes that plaintiff filed a notice of errata on February 10, 2026, supplementing the complaint. There is no evidence in the court’s file the notice of errata was ever served on defendants.

Based on the foregoing, the motion is granted. Default of defendant Gallagher entered March 30, 2026 and default judgment entered April 3, 2026 are set aside. The writ of